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UNITED STATES ENVIRONMENTAL PROTECTION AGENCY

REGION 8

999 18TH STREET - SUITE 500
DENVER, CO 80202-2466

AUG 26 1998

Ref: 8P2-AR

Honorable Ben Nighthorse Campbell
United States Senator
19 Old Town Square, Suite 238, #42
Fort Collins, CO 80524

Dear Senator Campbell:

Thank you for your letter of August 7, 1998, which enclosed correspondence addressed to Mr. Ram Seetharam, Colorado Department of Public Health and Environment (CDPHE), from the St. Vrain Valley Community Watchdogs organization. The organization expressed concern over a permit application from Southdown, Inc., of Lyons that shows an increase in particulate emissions from Southdown's cement manufacturing facility.

CDPHE is the primary regulatory agency for the review of the permit. CDPHE provided a copy of the application as a courtesy to EPA. We are reviewing CDPHE's analysis of the impacts from the increase in particulate emissions on environmental regulations. The review will be completed within the next 30 days and discussed with CDPHE.

The dust problems in Lyons are associated with the occurrence of high winds in the area. EPA's compilation of control technology for fugitive dust is being reviewed for applicability in high wind areas. The result of the review will also be forwarded to CDPHE within 30 days.

The St. Vrain organization asked in their letter for a public hearing regarding the permit. The State told us they are seeking an opinion from their Attorney General's office on whether a public hearing may be conducted. A decision on the hearing has not been made.

We appreciate your writing on behalf of the St. Vrain Valley Community Watchdogs. Comments on the permit will be passed along to you at the same time the CDPHE receives our comments. If you or your staff have further questions regarding this information, please call Richard Long, Director of our Air and Radiation Program, at (303) 312-6005.

Sincerely,

William P. Yellowtail
Regional Administrator



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COMMUNITY ADVOCACY

Assistance needed in the following areas:

**Volunteer legal counsel
Volunteer ornithologist
Wildlife management consultant
Hydrologist
Volunteers for mailings
Students for research projects**

If you have expertise or know of someone who fits any category, please contact us: P.O. Box 82, Hygiene, CO 80533

My contribution to my health and family health in Boulder County:

_____ \$5.00; _____ \$10.00; _____ \$15.00; _____ \$25.00; _____ Other _____

Your contribution will help with postage, photo reproductions, envelopes, research, etc. Checks payable to St. Vrain Valley Community Watchdogs

THIS MAILING HAS A DISTRIBUTION OF 225 INDIVIDUALS AND ORGANIZATIONS. PLEASE SHARE THIS INFORMATION WITH FRIENDS AND NEIGHBORS. SEND NAMES OF INDIVIDUALS WHO WOULD LIKE TO BE INCLUDED IN FUTURE CORRESPONDENCE.